

**IN THE COMMON PLEAS COURT OF MIAMI COUNTY, OHIO  
GENERAL DIVISION**

|                                |   |                             |
|--------------------------------|---|-----------------------------|
| <b>THE OTHER WOMAN AND THE</b> | : |                             |
| <b>WIFE, LLC,</b>              | : | <b>CASE NO.: 24 CV 498</b>  |
|                                | : |                             |
| <b>Plaintiff,</b>              | : |                             |
|                                | : | <b>JUDGE STACY M. WALL</b>  |
| <b>vs.</b>                     | : |                             |
|                                | : |                             |
| <b>KRISTEN JACOBS,</b>         | : |                             |
|                                | : |                             |
| <b>Defendant/Counterclaim</b>  | : |                             |
| <b>Third-Party Plaintiff,</b>  | : |                             |
|                                | : |                             |
| <b>vs.</b>                     | : |                             |
|                                | : |                             |
| <b>CHELSEA SMALLWOOD,</b>      | : | <b>NOTICE OF SETTLEMENT</b> |
|                                | : | <b>CONFERENCE</b>           |
| <b>Third-Party Defendant.</b>  | : |                             |

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Your Settlement Conference will be held on May 1, 2026 at 9:30 o'clock A.M. Settlement Reports must be brought to the Conference.

Prior to the Settlement Conference, the designated trial counsel for all parties shall meet together for the purpose of arriving at stipulations and agreements for the purpose of simplifying the issues to be tried. Counsel for each party shall then prepare a Settlement Report, which shall be brought to the Conference. The Report shall be as concise as possible and shall state in numerical order all of the following items:

1. A concise statement of the elements of each claim or defense asserted by the party filing the Memorandum(s).
2. Those facts established by admissions in the pleadings, admissions by discovery and stipulations of counsel.
3. The contested issues of fact.
4. The contested issues of law, together with counsel's citations of authority for his position.
5. The names and addresses of witnesses, together with a brief statement of the subject matter of each witness' expected testimony.

6. The names, addresses and qualifications of the expert witnesses expected to testify at trial, together with a brief statement of the subject matter of each expert witness' testimony and a brief summary of each expert witness' expected opinions.
7. A list of exhibits counsel intends to offer into evidence marked as follows:
  - (a) Joint exhibits with Roman numerals;
  - (b) Plaintiff's exhibits with Arabic numerals;
  - (c) Defendant's exhibits with letters;
  - (d) Third-party exhibits identified as such.
8. A list of all special damages being requested.
9. A separate written proposal for settlement of the claims and defenses. This proposal shall be submitted *in camera*.
10. A listing of depositions intended to be used at trial. If any deposition will be read, counsel shall specify those portions of such deposition that will be read. Such specification shall be in writing, filed and contemporaneously provided to the court and all other parties not less than 14 days in advance of trial. All other parties shall file any objections thereto, in writing, not less than seven days before trial.

All video-taped depositions and the written transcripts thereof required by Local Rule 16 shall be filed not less than 14 days before trial with notice of such filing to be contemporaneously provided to the court and all other parties. All other parties shall file any objections hereto in writing not less than seven days before trial.

This Settlement Conference shall be attended by the designated trial counsel and a representative of each party who has full authority to settle the entire case. Should the designated trial counsel fail to appear or to comply with this Order, an *ex parte* hearing may be held and judgment of dismissal or default, or other appropriate judgment entered, or sanctions imposed. In no event shall the sanction be less than a Two Hundred Fifty Dollar (\$250.00) fine.

IT IS SO ORDERED.

Stacy M. Wall  
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JUDGE STACY M. WALL  
JR 1160 pg. 131

The clerk shall serve a copy of this Order by regular mail upon:

Margo S. Brandenburg/Anthony V. Graber, Attorneys for Plaintiff and  
Third-Party Defendant Smallwood

Morgan K. Napier, Attorney for Defendant/Third-Party Plaintiff Jacobs